

TENTATIVE RULING(S) FOR September 9, 2026

Department S37 – Judge Winston Keh

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You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2325130

Abernathy v. Medina et al

TENTATIVE RULING(S):

Demurrer & Strike. Defendants Medina, Marti, Jang, Amen, Jeon, Sayo, and Empower demurred to the 4th, 8th, 10th, 12th, and 20th causes of action, and moved to strike, essentially, the entire Third Amended Complaint. At the April 1, 2026, hearing the Court ruled, per Minute Orders:

Court strikes 6th, 7th, 18th and 19th causes of action. Court overrules on the ground of uncertainty. Court sustains WITHOUT LEAVE TO AMEND on the 4th cause of action by Medina, but WITH LEAVE TO AMEND on the 4th cause of action by Marti, Jang, Amen, Jeon, Sayo, and Empower. Court Sustains WITHOUT LEAVE TO AMEND the 8th and 10th causes of

action. Court Overrules the 12th cause of action by Medina, Marti, Jang, Sayo, and Empower BUT Sustains WITH LEAVE TO AMEND to the 12th cause of action by Amend and Jeon. Court sustains WITHOUT LEAVE TO AMEND the 20th cause of action.

Motion to Strike is granted in part.

Court Denies striking the “irrelevant” allegation.

Court strikes 1st, 3rd, 5th, 9th, 11th, and 13th-17th causes of action against Medina, but Deny striking those same causes of action against defendants Marti, Jang, Amen, Jeon, Sayo, and Empower.

Court denies striking any unknown punitive damage allegations.

*As to the 4th Cause of action: leave to amend as alleged against Defendants Marti, Jang, Amen, Jeon, Sayo, and Empower is 30 days from the date of this decision.

*As to the 12th cause of action: leave to amend as alleged against Defendants Amen and Jeon is 30 days from the date of this decision.

*Concerning Medina’s GRANTED Motion to Strike 1st-3rd, 5th, 9th, 11th, 13-17th causes of action as improperly pled against them in light of the Court’s May 20, 2025 ruling sustaining without leave to amend.

Defendants Medina, Marti, Jason, Jang, Amen, Jeon, Sayo, and Employer now moves for clarity and/or correction on the above ruling on their Demurrer and Strike Motion. Plaintiff Abernathy opposes. Defendants reply.

Analysis

The Court has inherent authority to amend its processes and orders to conform them to law and justice. (Code Civ. Proc., §128, subd. (a)(8).) The Court also has inherent authority to correct or clarify its orders. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108; *In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 213.)

Defendants primarily seek clarification of the April 1, 2026, rulings by requesting that each Defendant be identified by full name. The moving papers, however, demonstrate that Defendants understood “Marti,” “Medina,” and “Sayo” to refer collectively to Glenda & Eduardo Marti, Wendy Y. & Nicholas Jon Medina, and Leon Carlo & Lisa Sayo. There is no indication that any party was confused by the use of the collective surnames.

Defendants also seek clarification as to whether the rulings on the 8th, 10th, and 20th causes of action applied to all Defendants who filed the Demurrer. Although the Minute Orders and Attachment do not expressly state this, the reasonable reading is that they apply to all Defendants who filed the Demurrer. The Attachment consistently refers to “Defendants,” supporting that interpretation.

Finally, Defendants contend that the striking of causes of action against Medina, based on the Court’s prior ruling sustaining the demurrer without leave to amend, should be clarified as applying to the other Defendants. It does not. The Attachment makes clear that those causes of action were stricken as to Medina because of the prior ruling, while Defendants Marti, Jang, Amen, Jeon, Sayo, and Empower were not parties to that prior Demurrer. Thus, the ruling was limited to Medina and requires no correction or clarification.

Accordingly, the Court finds the April 1, 2026, Minute Orders and Attachment sufficiently clear. The Court therefore DENIES Defendants’ Motion to Clarify or Correct the April 1, 2026, Minute Orders and Attachment.